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KHOURY v. AMERICAN HONDA MOTOR, CO., INC.

demurrer to the FIRST AMENDED complaint

Date of Hearing: 7/21/2026 Trial Date: None set

Department: 45 Case No.: 25STCV30656

Moving Party: Defendant American Honda Motor Co., Inc.

Responding Party: Plaintiff Natalie Khoury

BACKGROUND

This is a lemon law action arising out of Plaintiff Natalie Khoury's ("Plaintiff") purchase of a 2020 Honda Pilot, VIN 5FN9F5H97LB025517 (the "Subject Vehicle"), which was manufactured and/or distributed by American Honda Motor Co., Inc. ("AHM").

On February 20, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against AHM and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; and (4) Breach of the Implied Warranty of Merchantability – Civil Code Section 1791.1, Section 1794.

On May 26, 2026, AHM filed the instant Demurrer to the FAC. On July 8, 2026, Plaintiff filed an Opposition. On July 13, 2026, AHM filed a Reply.

[Tentative] Ruling

Defendant American Honda Motor Co., Inc.'s Demurrer to the First Amended Complaint is SUSTAINED with 30 days leave to amend.

LEGAL STANDARD

“The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)

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“A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether “the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (Id.) The Court does not “read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint ‘as a whole and its parts in their context.’ [Citation.]” (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court “assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (Harris, supra, 56 Cal.4th p. 240.) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

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A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

ANALYSIS

AHM demurs the entire FAC on the grounds that it is barred by the four-year statute of limitations period set forth in Commercial Code Section 2725, subdivision (2).

“[T]he California courts have consistently held that a demurrer which raises the defense that a statute of limitation bars the action cannot be sustained unless the facts alleged in the complaint show that the action is barred. If all that appears from the facts alleged is that the action might be barred, the defense cannot be raised by demurrer.” (Anderson v. McNally (1957) 150 Cal.App.2d 778, 783; see also Pike v. Zadig (1915) 171 Cal. 273, 277, disapproved of on other grounds by Decesare v. Lumbert (1983) 144 Cal.App.3d 20, stating [“a demurrer on the ground of the bar of the statute of limitations does not lie, where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.”].)

“The statute of limitations for a violation of warranty is four years.” (Flat v. Ford Motor Company (N.D. Cal. 2023) 678 F.Supp.3d 1138, 1140 citing to Mexia v. Rinker Boat Co. (2009) 174 Cal.App.4th 1297, 1305-06 Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 215 [“Section 2725 of the California Uniform Commercial Code provides that an action for breach of warranty accrues on tender of delivery. An exception is made where a warranty ‘explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance.’”].) “Typically, a breach of the implied warranty of merchantability occurs at the date of sale.” (Id. at 1141.) “However, the Song-Beverly Act provides that the ‘duration of the implied warranty of merchantability and where present the implied warranty of fitness shall

be coextensive in duration with an express warranty ... but in no event ... have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.” Nonetheless, the California Court of Appeal determined that the durational limit set forth in Civil Code Section 1791.1, subdivision (c) extends the implied warranty to future performance. (Id.) Thus, “the implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale but must occur no later than the durational limit set forth in Section 1791.1(c).” (Id.)

The FAC alleges, inter alia, that on or about May 12, 2021, Plaintiff purchased a brand new 2020 Honda Pilot, VIN 5FN9F5H97LB025517 (the “Subject Vehicle”), which was manufactured and/or distributed by American Honda Motor Co., Inc. (“AHM”). (FAC, ¶¶6, 17.) Plaintiff received express written warranties, including but not limited to: “a 3 year/36,000 mile New Vehicle Limited Warranty, and a 5 year/60,000 mile Powertrain Limited Warranty, in which [AHM] undertook to preserve or maintain the utility or performance of Subject Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time.” (Id., ¶19.) During Plaintiff’s ownership of the Subject Vehicle, it manifested multipurpose camera defects, electrical system defects, infotainment system defects, and radio defects (“Subject Vehicle defects”). (Id., ¶20.) The Subject Vehicle defects substantially impaired the use, value, and/or safety of the Subject Vehicle. (Id.)

Taking the allegations as true, the earliest date the express and implied warranties regarding the defects alleged could have accrued was the date of purchase, May 12, 2021. This action was originally filed on October 20, 2025, which is four (4) years and five (5) months after the purchase date. As such, absent properly pleaded facts showing tolling provisions apply, this lawsuit was filed outside of the four-year statute of limitations period.

Here, Plaintiff fails to plead any facts that support the application of Class Action Tolling as set forth in *American Pipe & Construction Co. v. Utah* (1974) 414 U.S. 538 (*American Pipe*). “Underlying the tolling rule of *American Pipe* were two major policy considerations. The first was the protection of the class action device... The second consideration involved the effectuation of the purposes of the statute of limitations.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1121.) Essentially, the Court is tasked with protecting judicial efficiency and economy of litigation and protecting the defendant from unfair claims, i.e., claims it did not have sufficient notice of regarding substance and nature. (Id. at 1122-1123.) The FAC merely alleges: “To the extent there are any statutes of limitation applicable to Plaintiff’s claims, including, without limitation, the California Commercial Code’s express warranty, implied warranty of merchantability, implied warranty of fitness for a particular purpose, and Song-Beverly Warranty Act, the running of the limitation periods have been tolled by various tolling doctrines, including but not limited to, the discovery rule, the repair rule, and equitable tolling.” (FAC, ¶8.) There are no allegations that Plaintiff was a participant in a prior class action lawsuit against AHM related to the alleged Subject Vehicle defects herein that was denied such that AHM had prior notice of the substance and nature of her claims now alleged in the FAC.

Likewise, the tolling provisions the Song-Beverly Act under Section 1795.6 are restricted to repair-related scenarios as it pertains to the express warranty period. (See generally, *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 394.) Specifically, “the warranty period is tolled or extended under only three circumstances: (1) the car is in the shop for warranty repairs (§ 1795.6, subd. (a)(1)), (2) there are delays in warranty repairs beyond the control of the buyer, and (3) upon notice from the buyer, given within 60 days of completion of warranty repairs, that those repairs did not solve the problem (§ 1795.6, subd. (b)). The statute provides no other circumstances under which the warranty is tolled or extended.” (Id.) The FAC does allege that the Subject Vehicle was presented to AHM’s authorized repair facility on two separate occasions, i.e., February 8, 2022 and February 15, 2022 for warranty repairs. (FAC, ¶22.) The FAC also alleges that technicians at AHM’s authorized repair facility inspected the Subject Vehicle, verified Plaintiff’s complaints, and advised at pick up that the Subject Vehicle had been repaired and was working as designed. (Id.) However, the FAC is devoid of any allegations that there were delays in the warranty repairs let alone delays beyond Plaintiff’s control. Thus, Plaintiff cannot avail herself to the tolling provision under Section 1795.6 under the Song-Beverly Act.

As to Plaintiff’s brief argument that the FAC pleads facts to support delayed discovery, thus tolls the statute of limitations period (Opp. at 8:11-18), it is not supported by legal authority. (See *Goldstein v. General Motors LLC* (S.D. Cal. 2021) 517 F.Supp.3d 1076, 1094 [“Song-Beverly’s statute of limitations is four years, and the discovery rule does not apply to toll the statute of limitations”]; see also *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305 [“the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.”].)

On the other hand, a defendant may be equitably estopped from asserting the statute of limitations as a defense “(1) if one potentially liable for a construction defect represents, while the limitations period is still running, that all actionable damage has been or will be repaired, thus making it unnecessary to sue, (2) the plaintiff reasonably relies on this representation to refrain from bringing a timely action, (3) the representation proves false after the limitations period has expired, and (4) the plaintiff proceeds diligently once the truth is discovered.” (Lantzy v. Centex Homes (2003) 31 Cal.4th 363, 384.) “Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made.” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 133–134.)

As discussed above, the FAC does allege that AHM's technicians at their authorized repair facility advised the Subject Vehicle defects, which were actionable damage that manifested during the warranty period, had been repaired. (FAC, ¶22b.) The FAC further alleges that the statements, representations of repairs made assurances by AHM's technicians at their authorized repair facility led Plaintiff to believe that the recurring systems were not the result of defects, misleading and delaying Plaintiff's discovery of the Subject Vehicle defects. (Id., ¶15.) Taking these allegations as true AHM's authorized repair facility technicians represented to Plaintiff that the Subject Vehicle defects had been repaired.

Contrarily, the FAC fails to show that Plaintiff reasonably relied on this representation. (See generally Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 655; Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP (2005) 133 Cal.App.4th 658, 686.) Specifically, the FAC alleges that on or about February 15, 2022, AHM's authorized repair facility technicians represented to Plaintiff that the Subject Vehicle defects had been repaired. (FAC, ¶22b.) The FAC further alleges that, thereafter, Plaintiff continued to experience the Subject Vehicle defects. (Id., ¶22c.) Moreover, Plaintiff waited nearly three years after the last alleged repair attempt, wherein the Subject Vehicle continued to experience the Subject Vehicle defects prior to filing the present action. Thus, the FAC fails to allege facts showing that Plaintiff acted with diligence. (See e.g., Gundogdu v. King Mai, Inc. (2009) 171 Cal.App.4th 310, 317.)

Accordingly, the FAC fails to plead sufficient facts to either toll the statute of limitations period and/or estop AHM from raising such defense.

CONCLUSION

Based on the foregoing, Defendant American Honda Motor Co., Inc.'s Demurrer to the First Amended Complaint is SUSTAINED with 30 days leave to amend.